

HOUSE BILL No. 1159

DIGEST OF INTRODUCED BILL

Citations Affected: IC 20-34-3.

Synopsis: Prekindergarten vision screening. Requires the governing body of each school corporation to conduct vision testing for prekindergarten children. Allows for the use of electronic eye charts.

Effective: July 1, 2026.

Harris

January 5, 2026, read first time and referred to Committee on Education.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1159

A BILL FOR AN ACT to amend the Indiana Code concerning education.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 20-34-3-12, AS AMENDED BY P.L.164-2023,
2 SECTION 52, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 JULY 1, 2026]: Sec. 12. **(a) For purposes of this section, "electronic**
4 **eye chart" means any computerized or other electronic system,**
5 **device, automated computer program, or method of displaying on**
6 **an electronic screen medically accepted and properly sized**
7 **optotypes, including letters, numbers, or symbols, that is used to**
8 **assess an individual's visual acuity.**
9 **(a) (b)** For purposes of this section, "modified clinical technique"
10 means a battery of vision tests that includes:
11 (1) a visual acuity test to determine an individual's ability to see
12 at various distances;
13 (2) a refractive error test to determine the focusing power of the
14 eye;
15 (3) an ocular health test to determine any external or internal
16 abnormalities of the eye; and
17 (4) a binocular coordination test to determine if the eyes are



working together properly.

~~(b)~~ (c) For purposes of this section, "vision screening" means the testing of visual acuity to determine an individual's ability to see at various distances using:

- (1) the Snellen chart;
- (2) Sloan letter charts;
- (3) HOTV letter or LEA symbol charts for younger students; ~~or~~
- (4) subject to subsection (m), electronic eye charts; or**
- ~~(4)~~ **(5) other** technology devices, including photoscreens or autorefractors, for a child who is unable to perform the tests described in subdivisions (1) through (3);

at a distance of either ten (10) or twenty (20) feet for distance vision, depending on the calibration of the chart being used, and a distance of fourteen (14) inches for near vision.

~~(c)~~ (d) The modified clinical technique shall be performed by an ophthalmologist licensed as a physician under IC 25-22.5 or an optometrist licensed under IC 25-24.

~~(d)~~ (e) The governing body of each school corporation shall conduct a vision test for each student enrolling in or transferring into:

- (1) prekindergarten;**
- ~~(1)~~ **(2)** either kindergarten or grade 1;
- ~~(2)~~ **(3)** grade 3;
- ~~(3)~~ **(4)** grade 5; and
- ~~(4)~~ **(5)** grade 8;

and for each student suspected of having a visual defect.

~~(e)~~ (f) The vision test for students in kindergarten and grade 1 shall be conducted using the modified clinical technique unless a waiver is granted under section 13 of this chapter. If a waiver is granted for a school corporation, the governing body shall conduct a vision screening described in subsection ~~(b)~~ (c) upon each student's enrollment in kindergarten or grade 1.

~~(f)~~ (g) Each student described in subsection ~~(d)(2)~~; **(e)(3)**, ~~(d)(3)~~; **(e)(4)**, and ~~(d)(4)~~; **(e)(5)**, and each student suspected of having a visual defect, shall be tested using a vision screening of the student's visual acuity.

~~(g)~~ (h) The following standards apply for a vision screening under subsections ~~(e)~~ (f) and ~~(f)~~ (g):

- (1) A student in **prekindergarten**, kindergarten, or grade 1 who is unable to read with each eye the 20/30 line of the Snellen chart or the 20/32 line of the Sloan letters, HOTV, or LEA symbol optotypes shall be recommended for further examination based upon the recommendation of the individual performing the



- 1 screening.
- 2 (2) A student:
- 3 (A) in grade 3, grade 5, or grade 8; or
- 4 (B) suspected of having a visual defect;
- 5 who is unable to read with each eye the 20/30 line of the Snellen
- 6 chart or the 20/32 line of the Sloan letters shall be recommended
- 7 for further examination based upon the recommendation of the
- 8 individual performing the screening.
- 9 (3) If a student at any grade level is recommended for further
- 10 examination, the school must provide a written recommendation
- 11 for further examination to the parent or legal guardian of the
- 12 student.
- 13 ~~(h)~~ (i) Records of all tests shall be made and continuously
- 14 maintained by the school corporation to provide information useful in
- 15 protecting, promoting, and maintaining the health of students. The
- 16 Indiana department of health, in consultation with the state board, shall
- 17 adopt rules concerning vision testing equipment, qualifications of
- 18 vision testing personnel, visual screening procedures, and criteria for
- 19 failure and referral in the screening tests based on accepted medical
- 20 practice and standards.
- 21 ~~(i)~~ (j) The school corporation's governing body and the
- 22 superintendent shall receive annually the following information
- 23 concerning the tests conducted under this section:
- 24 (1) The number of students eligible for testing, by grade.
- 25 (2) The number of students tested, by grade.
- 26 (3) The number of students by grade who were tested using the
- 27 modified clinical technique.
- 28 (4) The number of students by grade who were tested using a
- 29 vision screening.
- 30 (5) The number of students by grade who passed a test.
- 31 (6) The number of students by grade who failed a test or were
- 32 referred for further testing.
- 33 (7) The name of the individual or department that supervised the
- 34 testing.
- 35 ~~(j)~~ (k) Each school corporation shall annually provide to the
- 36 department, for each school within the school corporation, the
- 37 following information concerning the tests conducted under this
- 38 section:
- 39 (1) The number of students tested by grade.
- 40 (2) The number of students by grade who were tested using the
- 41 modified clinical technique.
- 42 (3) The number of students by grade who were tested using a



vision screening.

(4) The number of students who passed a test by grade. ~~and~~

(5) The number of students who failed a test or who were referred for further testing.

~~(k)~~ **(l)** Not later than October 1 each year, the department shall report for the previous school year:

(1) a compilation of the information received from school corporations under subsection ~~(j)~~; **(k)**;

(2) information received under section 13 of this chapter, including:

(A) the number of school corporations that applied for a waiver;

(B) the number of waivers approved;

(C) the number of waivers denied;

(D) the name of each school corporation that applied for a waiver and whether the waiver was approved or denied; and

(E) the reason for the approval or denial;

(3) the total number of students eligible for testing; and

(4) the total number of students tested;

to the legislative council in electronic format under IC 5-14-6.

(m) An electronic eye chart may only be used if the electronic eye chart meets national standards of care and the guidelines set forth in the most recent version of the Procedures for the Evaluation of the Visual System by Pediatricians published by the American Academy of Pediatrics.

SECTION 2. IC 20-34-3-13, AS AMENDED BY P.L.164-2023, SECTION 53, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 13. (a) If a school corporation is unable to comply with section ~~12(e)~~ **12(f)** of this chapter, the governing body may, before November 1 of a school year, request from the secretary of education a waiver of the requirements of section ~~12(e)~~ **12(f)** of this chapter.

(b) The waiver request under subsection (a) must:

(1) be in writing;

(2) include the reason or reasons that necessitated the waiver request; and

(3) indicate the extent to which the governing body attempted to comply with the requirements under section ~~12(e)~~ **12(f)** of this chapter.

(c) The secretary of education shall take action on the waiver request not later than thirty (30) days after receiving the waiver request.

(d) The secretary of education may:

(1) approve the waiver request;



1 (2) deny the waiver request; or

2 (3) provide whatever relief that may be available to enable the
3 school corporation to comply with the requirements under section
4 ~~12(e)~~ **12(f)** of this chapter.

5 (e) If the secretary of education approves the waiver request, the
6 governing body shall conduct an annual screening test of the visual
7 acuity of each student as described in section ~~12(b)~~ **12(c)** of this
8 chapter upon the student's enrollment in or transfer to grade 1.

9 (f) The governing body of each school corporation shall make and
10 maintain records of all waivers requested by the governing body under
11 this section.

12 (g) The secretary of education shall make and continuously maintain
13 records of all actions taken by the secretary of education concerning all
14 waivers requested under this section.

15 (h) A request for a waiver under this section must be made annually.

